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General Services Administration
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Re: Public Comment on FAR Case 2026-002 — Revolutionary FAR Overhaul, Parts 6, 7, 10, 18, 26, 37, and 41 (91 FR 37636). Comment concerns Part 7 (Acquisition Planning) and Part 6 (Competition).

To the FAR Council:
I am an independent practitioner and researcher who has spent 3+ decades structuring capital-project procurement and studying why complex projects fail to meet original objectives (price, schedule, and scope). I write in support of the Overhaul's central move — replacing prescriptive mandates with streamlined regulation, contracting-officer discretion, and companion guidance built around "critical thinking, market awareness, and risk literacy." I offer one specific, low-cost recommendation to strengthen that move where this rule reorganizes acquisition planning, and I note one technical consequence of the Part 15 relocation that deserves an express note.

1. The concern: a discretion-based FAR must give the workforce something to exercise discretion with.

Proposed FAR 7.102 rightly makes acquisition planning a fundamental requirement in all acquisitions and lists the high-level outcomes planning must promote — commercial acquisition, full and open competition, appropriate contract type, and use of existing contracts. This is a sound structure. But it names outcomes that concern the *form* of the acquisition and is silent on the outcome that most determines whether the other four hold: whether the **requirement itself is feasible and sufficiently defined before it is competed**.

This matters more, not less, under a streamlined FAR. When prescriptive checklists are removed and judgment is restored, the quality of a solicitation depends on the owner's ability to *test* the structural soundness of the requirement before issuing. A document that enters the market under-defined does not fail at award; it technically fails at issuance, and the failure surfaces later as protests, constructive modifications, cost growth, and disputes — the very "inefficient use of American taxpayer dollars" the Executive Order seeks to eliminate. The reform's own vocabulary names the antidote: "risk literacy." A structured and specific pre-issuance **feasibility check** is precisely a risk-literacy practice.

2. Recommendation: name requirement *feasibility-gate* as a planning outcome, and carry a *feasibility check* in the FAR Companion.

Two modest, discretion-preserving additions:

(1) **In proposed FAR 7.102, add the requirements *feasibility* and *definition* to the list of high-level outcomes acquisition planning must promote** — i.e., that planning should **confirm** the requirement is *feasible* and *defined* with enough specificity to be competed and enforced. This is a one-line, outcome-level addition consistent with the section's design; it prescribes no process and preserves full CO discretion over how the outcome is met.

(2) **In the FAR Companion, include a short pre-issuance structural check** a planner may use to test a draft solicitation for the conditions that predict sound delivery: singular accountability (one party

owns each decision and its consequence), feasibility validated before competition (feasibility-gate), scope prioritized against a defined baseline, claims substantiated rather than asserted, and a credible pre-award off-ramp. These map naturally onto existing FAR mechanisms — market research (now consolidated at Subpart 7.2), the competition framework of Part 6, and performance-based methods at Part 37 — and give the workforce a concrete instrument for the discretion the Overhaul restores.

Placement in the Companion rather than the regulation is purposeful and consistent with the Council's stated approach: this is "how-to" content best suited to non-regulatory guidance that "enables a contracting officer to use discretion in determining the application of a strategy to a given situation." It adds capability without adding mandate.

3. Basis and offer of material.

The check above derives from a structural framework I developed and applied across capital-project delivery (including the DOE/NREL RSF Project authored by me in 2007 and phase I completed in 2011), in which projects procured under these conditions were delivered by their owners' own metrics for budget, on schedule, and with compliant value above baseline, against an industry backdrop in which the large majority of complex projects consistently overrun. I make no proprietary claim on the record here; I offer the underlying principles as a contribution to the companion-guidance effort. A crosswalk mapping these principles to existing FAR authority — including the mechanisms in this rule — is available to the Council or its staff on request, as is a fuller description of the pre-issuance check. I would welcome any opportunity to share either with the appropriate office.

4. A technical note on the Part 15 relocation (FAR 7.105).

This rule relocates the industry-engagement requirements formerly at FAR 15.201 to proposed FAR 7.105, and consolidates market research at Subpart 7.2. I support both: pre-proposal engagement and market research are foundational to planning, and situating them there is correct. I note only that the pre-proposal exchange authority — which expressly names "the feasibility of the requirement" as a purpose — is the same mechanism that makes an early *feasibility-gate* check executable within existing procurement-integrity guidelines (FAR 3.104). I encourage the Council, in finalizing FAR 7.105 and Subpart 7.2, to preserve the express reference to feasibility of the requirement as a sanctioned purpose of industry engagement, so the planning-phase authority to test *feasibility before competition* remains explicit rather than inferred.

5. Summary.

The Overhaul's direction is sound and, in my view, much needed. My single recommendation is that a FAR built on discretion and risk literacy should name *feasibility* as a planning outcome and equip the workforce, through the Companion, with a concrete pre-issuance "closed feasibility-gate". This adds no mandate, preserves CO discretion, and directly serves the Executive Order's goal of preventing the downstream waste that under-defined and un-clear solicitations produce.

Thank you for the opportunity to comment.

Respectfully submitted,

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Filed as an individual. FAR Case 2026-002.